

Produit : Electronic / Measuring devices

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CANADA

Product's definition

Category

In which category the product is classified ?

"Consumer Products" under the Canada Consumer Product Safety Act (CCPSA)

"Dangerous Goods" under the Transportation of Dangerous Goods Act and Transportation of Dangerous Goods Regulations (TDG Act and TDG Regulations)

If the product plugs into the power grid (via outlet), it might be considered an "energy-using product" under the Energy Efficiency Act. Batteries may be considered Electronic Products under Division 9 of the Energy Efficiency Regulations. For further discussion, Please see 'Electrical/Measuring Devices - Chargers' category.

In all other Canadian provinces and territories, certain batteries are considered dangerous goods. The following acts apply :

- Alberta : Dangerous Goods Transportation and Handling Act : <https://www.qp.alberta.ca/documents/Acts/d04.pdf>
- British Columbia : Transport of Dangerous Goods Act : https://www.bclaws.gov.bc.ca/civix/document/id/complete/statreg/00_96458_01
- Manitoba : Dangerous Goods Handling and Transportation Act : <https://web2.gov.mb.ca/laws/statutes/ccsm/d012e.php>
- New Brunswick : Transportation of Dangerous Goods Act : <https://www.canlii.org/en/nb/laws/stat/rsnb-2011-c-232/latest/rsnb-2011-c-232.html>
- Newfoundland and Labrador : Dangerous Goods Transportation Act, <https://www.assembly.nl.ca/Legislation/sr/statutes/d01.htm>
- Nova Scotia : Dangerous Goods Transportation Act : <https://nslegislature.ca/sites/default/files/legc/statutes/dangerus.htm>
- Ontario : Dangerous Goods Transportation Act : <https://www.ontario.ca/laws/statute/90d01>
- PEI : Dangerous Goods (Transportation) Act : <https://www.princeedwardisland.ca/sites/default/files/legislation/D-03-Dangerous%20Goods%20%28transportation%29%20Act.pdf>
- Saskatchewan : The Dangerous Goods Transportation Act : <https://publications.saskatchewan.ca/#/products/465>
- Northwest Territories : Transportation of Dangerous Goods Act : <https://www.canlii.org/en/nu/laws/stat/rsnwt-nu-1988-c-81-suppl/latest/rsnwt-nu-1988-c-81-suppl.html#document>
- Nunavut : Transportation of Dangerous Goods Act, same as Northwest Territories
- Yukon: Dangerous Goods Transportation Act : <http://www.gov.yk.ca/legislation/acts/dagotr.pdf>

Regulations Cited in this Card

Canada Consumer Product Safety Act (S.C. 2010, c. 21) : <https://laws-lois.justice.gc.ca/eng/acts/c-1.68/>
Transportation of Dangerous Goods Act, SC 1992, c 34 : <https://lois-laws.justice.gc.ca/PDF/T-19.01.pdf>
- Transportation of Dangerous Goods Regulations, SOR/2001-286 : <https://laws-lois.justice.gc.ca/eng/regulations/sor-2001-286/>

Definition

What is the exact definition of the product ?

And if it exists, what is the interpretation of the authorities regarding it ?

Consumer Product

"consumer product" means a product, including its components, parts or accessories, that may reasonably be expected to be obtained by an individual to be used for non-commercial purposes, including for domestic, recreational and sports purposes, and includes its packaging.

Energy Using products

Means products that are prescribed by the Energy Efficiency Regulations. There are multiple definitions provided for "external power supply," depending on the product's properties.

Dangerous Goods

A product, substance or organism included by its nature or by the regulations in any of the classes listed in the Schedule to the TDG Regulation. The Schedule sets out 9 classes of dangerous goods :

Class 1 - Explosives, including explosives within the meaning of the Explosives Act

Class 2 - Gases: compressed, deeply refrigerated, liquefied or dissolved under pressure

Class 3 - Flammable and combustible liquids

Class 4 - Flammable solids; substances liable to spontaneous combustion; substances that on contact with water emit flammable gases

Class 5 - Oxidizing substances; organic peroxides

Class 6 - Poisonous (toxic) and infectious substances

Class 7 - Nuclear substances, within the meaning of the Nuclear Safety and Control Act, that are radioactive

Class 8 - Corrosives

Class 9 - Miscellaneous products, substances or organisms considered by the Governor in Council to be dangerous to life, health, property.

Batteries are generally considered to be class 9 dangerous goods, though this may vary depending on the type of battery (for instance, lead-acid batteries are classified as Class 8 corrosives). The manufacturer or consignor, within the meaning of the TDG Act (or shipper), is the entity responsible for proper classification of the battery. Best practices involve corroboration via UN numbers (found at Schedule 1 of the TDG Regulations). Note that not all batteries are subject to the TDG Act and Regulations (e.g. household alkaline, nickel cadmium (NiCad) but note that mode of transport, e.g. air transport, may elicit additional requirements).

Since the term "battery" is not defined in the TDG Regulations, Transport Canada provides a guidance document. It defines a battery as a device that stores energy to be released as needed. A battery consists of two or more cells connected electrically and equipped with features such as casings, terminals, markings, and protective devices to ensure they work properly (e.g., cordless phone batteries, etc.).

Comments

Comments

For the purposes of this analysis, it has been considered that the batteries in question, themselves, do not plug in to an electric outlet. Items which are plugged in are subject to additional requirements under the Canadian Electrical Code. However, the Canadian Electrical Code has been amended to include provisions for lithium batteries. To the extent that products are lithium batteries, please refer to the “Electronic/Measuring Devices - Chargers” subcategory for additional details and requirements.

It has also been considered that the batteries do not transmit radio waves. If they do, additional requirements will apply. Please refer to the “Electronic/Measuring Devices - Chargers” category for additional details and requirements.

* Please note, however, that more information regarding the nature, composition, etc. of each specific product would be necessary in order to make a determination as to which category the product falls under and which regulatory regimes apply to the product. Please also note that additional regulatory and/or permit requirements may apply depending on the product's composition, nature, etc.

Additional Regulations Cited in this Section

- C22.1:21, Canadian Electrical Code, Part I (25th edition), Safety Standard for Electrical Installations
: <https://www.orderline.com/csa-c22-1-21-canadian-electrical-code-part-i-25th-edition-safety-standard-for-electrical-installations#:~:text=The%20French%20edition%2C%20CSA%20C22,electrical%20installations%20across%20the%20country.>

- CAN/CSA-C22.2 NO. 0-10 (R2015) - Canadian Electrical Code, part II
: https://www.orderline.com/can-csa-c22-2-no-0-10-r2015-general-requirements-canadian-electrical-code-part-ii?gclid=EA-lalQobChMIqo-1yLeS5wIVRr7ACh2xogc8EAAYAiAAEgLMepD_BwE

Labelling

Language

In which language must the information on the product or on the packaging be indicated? If English is sufficient please indicate NA.

See General Infos : https://docs.google.com/document/d/1kx_ngCLpSWWq3uj-Cd6W5tuH75yN-VnV/edit

For practical information see : <https://docs.google.com/document/d/1wyEHX4rnhygCPYlbtvzQFRFdD-KgcUF2bQHEk5-u02O4/edit?tab=t.0>

Information under the TDG Act and TDG Regulations may be in English or French. Other information under other statutes must be in English and French.

For electrical equipment (if batteries are lithium batteries), see 'Electronic/Measuring Devices - Chargers' subcategory.

Mandatory labelling on product

What are the mandatory labelling on the product ?

See General Infos : https://docs.google.com/document/d/1kx_ngCLpSWWq3uj-Cd6W5tuH75yN-VnV/edit

For practical information see : <https://docs.google.com/document/d/1wyEHX4rnhygCPYlbtvzQFRFdD-KgcUF2bQHEk5-u02O4/edit?tab=t.0>

- Goods under the TDG Act and Regulations

Must bear a compliance mark to indicate compliance with a safety standard that applies under the regulations. Part 4 of the Regulations sets out the requirements for the 'dangerous goods safety mark' and the 'lithium battery mark,' as applicable.

- The Products Containing Mercury Regulations also have labelling requirements, including :
 - the statement "contains mercury / contient du mercure"
 - safe handling procedures and measures to be taken in case of breakage
 - disposal and recycling options
 - a statement that the product should be recycled in accordance with applicable laws.

Please consult the regulation for the full list of conditions (for both format and substance).

- Electrical Products

If batteries are lithium batteries, the Canadian Electrical Code requires the product to contain "suitable use, handling, and charging information specific to the application."

The Canadian Electrical Code (especially section 5.22 for lithium batteries) sets out the applicable marking requirements for electrical products.

Additional Regulations Cited:

Canadian Environmental Protection Act, 1999 (S.C. 1999, c. 33), <https://laws-lois.justice.gc.ca/eng/acts/c-15.31/>
- Products Containing Mercury Regulations (SOR/2014-254), <https://laws-lois.justice.gc.ca/eng/regulations/SOR-2014-254/index.html>

Transportation of Dangerous Goods Act, SC 1992, c 34, <https://lois-laws.justice.gc.ca/PDF/T-19.01.pdf>
- Transportation of Dangerous Goods Regulations, SOR/2001-286, <https://laws-lois.justice.gc.ca/eng/regulations/sor-2001-286/>

Transport Canada Guide - Importing Batteries, <https://www.tc.gc.ca/eng/tdg/transporting-batteries.html>

C22.1:21 - Canadian Electrical Code, Part I (25th edition), Safety Standard for Electrical Installations, www.orderline.com/csa-c22-1-21-canadian-electrical-code-part-i-25th-edition-safety-standard-for-electrical-installations#:~:text=The%20French%20edition%2C%20CSA%20C22,electrical%20installations%20across%20the%20country

CAN/CSA-C22.2 NO. 0-10 (R2015) - Canadian Electrical Code, part II, https://www.orderline.com/can-csa-c22-2-no-0-10-r2015-general-requirements-canadian-electrical-code-part-ii?gclid=EAlaQobChMIqo-1yLeS5wIVRr7ACh2xogc8EAAyAiAAEgLMcPD_BwE

Mandatory labelling on packaging

What are the mandatory labelling on the packaging ?

See General Infos : https://docs.google.com/document/d/12FUtlolsHCK_c79pKmKcE6vTSH4z563/edit?usp=sharing&ouid=108158560944877852516&rtpof=true&sd=true

For practical information see : <https://docs.google.com/document/d/1wyEHX4rnhygCPYlbtvzQFRFdD-KgcUF2bQHEk5-u02O4/edit?tab=t.0>

- Dangerous Goods Safety Marks under the TDG Act and Regulations

Dangerous goods safety marks give a quick identification of dangerous goods in the event of an emergency situation such as an accident or an accidental release of dangerous goods from a means of containment.

Under the TDG Regulation, the means of containment must also comply with all applicable safety standards and display all applicable prescribed safety marks. These requirements can be found in Part 4 of the TDG Regulations. The mark will depend on the class of product, and the list of potential marks is provided in the Appendix of Part 4 of the Regulations. The proper mark to use will depend on the class of product. The Regulations (Part 4) provide details for font, colour, durability, size, and orientation of the mark. This Part also sets out how UN numbers must be displayed, where applicable. This Part discusses how the marks should be affixed on small means of containment, large means of containment and overpacks. In addition to Class-specific marks, the following marks may also be required: danger mark, elevated temperature mark, fumigation sign, marine pollutant mark, category b mark.

Responsibility to display the dangerous goods safety marks is shared between the consignor and the carrier.

Batteries subject to the TDG Act must comply with the labelling requirements of the TDG Act and Regulations. The Regulations discuss the particular marking for lithium batteries under Class 9 of the TDG Regulations, in section 4.24

(1) For the purposes of special provision 34, the lithium battery mark, illustrated in the appendix to this Part, must indicate :

- (a) "UN3090" for lithium metal cells or batteries;
- (b) "UN3480" for lithium ion cells or batteries; and
- (c) "UN3091" or "UN3481", as appropriate, for lithium cells or batteries that are contained in, or packed with, equipment.

(2) When a means of containment contains lithium cells or batteries assigned to different UN numbers, all applicable UN numbers must be indicated on one or more marks.

(3) Subject to subsection (4), the mark must be at least 120 mm wide × 110 mm high and the hatching must be at least 5 mm wide.

(4) The dimensions of the mark may be reduced for a means of containment that is an irregular shape or size if

- (a) the mark is at least 105 mm wide × 74 mm high; and
- (b) every symbol, letter and number required on the mark is reduced proportionately.

The Products Containing Mercury Regulations state when labelling must be made on the product's packaging, for example if the product is too small to accommodate the required labelling information.

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Mandatory labelling on the instructions manual

What are the mandatory labelling on the instructions manual (if one is required) ?

In which format, do we have to deliver the instruction manual to our customers ?

Nil.

For practical information see : https://docs.google.com/document/d/12FUtlol-sHCK_c79pKmKcE6vTSH4z563/edit?usp=sharing&oid=108158560944877852516&rtpof=true&sd=true

Warnings - General ones

Are general warnings required ? If yes, which ones ?

Warnings for Consumer Products

It is prohibited to manufacture, import, advertise, or sell any consumer product that is a “danger to human health or safety”, that is subject to a recall, or that does not conform to any order made by the Minister of Health with regards to the safety of the product.

The Canada Consumer Product Safety Act defines a “danger to human health or safety” as an unreasonable hazard, even potential, posed by a product during or as a result of its normal or foreseeable use that may reasonably be expected to cause the death of an individual exposed to it or have an adverse effect on that individual's health. You must therefore warn of any and all reasonably foreseeable risks.

Dangerous Goods Safety Marks

Dangerous goods safety marks are required to be displayed on the packaging of dangerous goods.

Dangerous goods safety marks must be :

(a) visible, legible and displayed against a background of contrasting colour;

(b) made of durable and weather-resistant material that will withstand the conditions to which they will be exposed without substantial detachment or deterioration of their colour, symbols, letters, text or numbers; and

(c) displayed in colours specified in the Appendix.

Warnings - Specific ones

Are specific warnings required ? If yes which ones ?

Nil.

Target Age

Is there any target age applicable? If so, does it have to be indicated and in which form?

Nil.

Sanctions / Fines

What are the sanctions / fines in case of non conformity ?

See General Infos : https://docs.google.com/document/d/1kx_ngCLpSWWq3uj-Cd6W5tuH75yN-VnV/edit

TDG Act

Maximum fine of \$50,000 or maximum imprisonment of two years. A court may also make additional orders, for example ordering the person to repair the damage to the environment arising from the commission of the offence. The total remedial liability that a court can issue cannot exceed \$1 million.

Comments

Comments

Nil.

Environment

Recycling - Eco taxes

Which regulations concerning ecodesign and recycling apply to this product? Are there any ecotaxes applicable to this category of product?

In Canada, waste management is the jurisdiction of the provinces and territories. At the provincial/territorial level, both "extended producer responsibility" ("EPR") and "product stewardship" programs are used to manage products at their end-of-life. Generally, EPR programs place the responsibility of end-of-life management on the product producers (e.g., brand owners, first importers or manufacturers), whereas "product stewardship" programs generally allocate responsibility to provincial or municipal governments. The main difference between the two approaches is that funding for EPR programs is provided by producers. Costs can be internalized as a factor of production or may be passed on to consumers. In contrast, under a product stewardship program, legislated environmental fees and/or public funds are commonly used as a funding base. Product stewardship programs usually do not allocate financial responsibility to producers.

The following mandatory programs are applicable. Please note that additional optional programs may apply.

In Quebec, containers and packaging may be subject to the compensation regime provided by the Regulation respecting compensation for municipal services provided to recover and reclaim residual materials, available at: <http://legisque-bec.gouv.qc.ca/en/ShowDoc/cr/Q-2,%20r.%2010>.

Additionally in Quebec, the vendor of batteries may be required to implement a recovery and reclamation program under the Regulation respecting the recovery and reclamation of products by enterprises, available at <http://legisque-bec.gouv.qc.ca/en/pdf/cr/Q-2,%20R.%2040.1.pdf>.

In Ontario, packaging may be subject to an audit under the Packaging and Printed Paper Stewardship Regulation, available at: <https://www.ontario.ca/laws/regulation/940104>.

Additionally in Ontario, batteries may be subject to a stewardship program under the Waste Electrical and Electronic Equipment regulations or the Municipal Hazardous or Special Waste regulations, available at <https://www.ontario.ca/laws/regulation/040393> and <https://www.ontario.ca/laws/regulation/060542>, respectively.

In Saskatchewan, packaging and papers may be subject to a stewardship plan under The Household Packaging and Paper Stewardship Program Regulation, available at: <http://www.qp.gov.sk.ca/documents/English/Regulations/Regulations/E10-21R5.pdf>.

Additionally in Saskatchewan, batteries may be subject to a stewardship program under the Waste Electronic Equipment Regulations, available at <http://www.qp.gov.sk.ca/documents/English/Regulations/Regulations/E10-21R4.pdf>.

In Manitoba, containers, packaging and papers may be subject to a stewardship plan under the Packaging and Printed Paper Stewardship Regulation, available at https://web2.gov.mb.ca/laws/regs/current/_pdf-regs.php?reg=195/2008.

Additionally in Manitoba, batteries may be subject to a stewardship program under the Electrical and Electronic Equipment Stewardship Regulation or the Household Hazardous Material and Prescribed Material Stewardship Regulation available at <http://recyclemyelectronics.ca/mb/wp-content/uploads/2012/04/ManitobaReg-2010.pdf> or http://web2.gov.mb.ca/laws/regs/current/_pdf-regs.php?reg=16/2010, respectively.

In British Columbia, packaging and papers, as well as batteries, may be subject to a stewardship plan under the British Columbia Recycling Regulation, available at: http://www.bclaws.ca/civix/document/id/loo72/loo72/449_2004.

In Alberta, batteries may be subject to a stewardship program under the Waste Designated Material Recycling and Management Regulation or the Electronics Designation Regulation, available at http://www.qp.alberta.ca/documents/Regs/2004_093.pdf and http://www.qp.alberta.ca/documents/Regs/2004_094.pdf, respectively.

In Newfoundland, electronic items may be subject to a stewardship program under the Waste Management Regulations, available at <http://www.assembly.nl.ca/legislation/sr/regulations/rc030059.htm>.

In New Brunswick, batteries may be subject to a stewardship program under the Designated Materials Regulations, available at <http://laws.gnb.ca/en/showdoc/cr/2008-54>.

In Nova Scotia, batteries may be subject to a stewardship program under the Solid Waste Resource Management Regulation, available at <https://www.novascotia.ca/just/regulations/regs/envsolid.htm>.

In Prince Edward Island, batteries may be subject to a stewardship program under the Materials Stewardship and Recycling Regulation, available at <https://www.princeedwardisland.ca/sites/default/files/legislation/e09-10.pdf>.

Labelling

What are the mandatory labellings to put on the product or on the packaging regarding the environmental rules ?

Technical rules / Standards

General safety requirements

What are the general safety requirements ? Does a risk assessment have to be conducted ? If yes, does it concern specific risk ?

See General Infos : https://docs.google.com/document/d/1kx_ngCLpSWWq3uj-Cd6W5tuH75yN-VnV/edit.

TDG Act and Regulations

These laws set out standards for the means of containment of the dangerous goods. There may be exemptions to these statutes, available under Part 1 of the TDG Regulations.

See General Federal Requirements for information relevant to consumer products.

Additional Regulations Cited :

Canada Consumer Product Safety Act (S.C. 2010, c. 21), <https://laws-lois.justice.gc.ca/eng/acts/c-1.68/>
- Transportation of Dangerous Goods Regulations, SOR/2001-286, <https://laws-lois.justice.gc.ca/eng/regulations/sor-2001-286/>

Health Canada has provided a Risk Assessment Framework Summary which provides more detail regarding such assessments, available at <https://www.canada.ca/en/health-canada/services/consumer-product-safety/legislation-guidelines/guidelines-policies/risk-assessment-framework.html>

Mandatory or voluntary standards

Are there some mandatory or voluntary standards applicable ? If yes, which ones ?

Please indicate the reference of the applicable standards

See General Infos : https://docs.google.com/document/d/1kx_ngCLpSWWq3uj-Cd6W5tuH75yN-VnV/edit

The TDG Act and Regulations

It is prohibited to import, offer for transport, handle or transport any dangerous goods unless the requirements of the TDG Act and TDG Regulations. The standards are listed in section 1.3.1 of the TDG Regulations, for both the product and the means of containment. Means of containment are also regulated under Part 5 of the TDG Regulations, with different requirements for small or large means of containment.

The TDG Regulations also create exceptions in certain situations. These exceptions include :

- The 150kg and 500kg Gross Mass Exemptions for goods being transported on a road vehicle, railway vehicle or vessel on a domestic voyage (s. 1.15, 1.16)
- The Limited Quantities Exemptions for goods being transported by road, rail, sea, or domestically (s. 1.17)
- The Excepted Quantities Exemptions: This exemption applies if dangerous goods are in means of containment that will not accidentally release the goods under normal transport conditions. Further, the quantity of the goods must be lower than the amounts set out in the Table to section 1.17.1. If so the goods will be exempt from Parts 3,4,5,6,7 and 8 of the TDG Regulations. However, the 'Excepted Quantities Mark' must be affixed to a visible side of the outer containment. If this exception may apply, see section 1.17.1 of the TDG Regulations for full conditions.

Provincial Standards

Each province has a version of the TDG Act. The provinces generally follow the Federal legislation, but should be reviewed.

Electrical Products

Lithium batteries are covered by the Canadian Electrical Code, parts I and II.

Additional Regulation Cited :

Transportation of Dangerous Goods Regulations, SOR/2001-286, <https://laws-lois.justice.gc.ca/eng/regulations/sor-2001-286/>

C22.1:21, Canadian Electrical Code, Part I (25th edition), Safety Standard for Electrical Installations, www.orderline.com/csa-c22-1-21-canadian-electrical-code-part-i-25th-edition-safety-standard-for-electrical-installations#:~:text=The%20French%20edition%2C%20CSA%20C22,electrical%20installations%20across%20the%20country.

CAN/CSA-C22.2 NO. 0-10 (R2015) - Canadian Electrical Code, part II, https://www.orderline.com/can-csa-c22-2-no-0-10-r2015-general-requirements-canadian-electrical-code-part-ii?gclid=EAlaIqObChMIqo-1yLeS5wIVRr7ACh2xogc8EAAYAiAAEgLM_ePD_BwE

Physical and mechanicals properties

What are the physical and mechanicals properties required ?

The TDG Act and Regulations contain provisions for physical properties of both batteries and the means of containment. For example, batteries must comply with requirements of the UN Manual of Tests and Criteria (applies to other physical properties in this chart, such as electrical, inflammability etc.).

The Products Containing Mercury Regulations only apply to batteries that have a mercury concentration higher than 0.0005% by weight in homogeneous materials. If so, the regulation sets out the maximum amount of mercury the product can have.

Additional Regulations Cited :

UN Manual of Tests and Criteria, https://www.unece.org/fileadmin/DAM/trans/danger/publi/manual/Rev5/English/03en_part3.pdf

Transportation of Dangerous Goods Regulations, SOR/2001-286, <https://laws-lois.justice.gc.ca/eng/regulations/sor-2001-286/>

Products Containing Mercury Regulations (SOR/2014-254), <https://laws-lois.justice.gc.ca/eng/regulations/SOR-2014-254/index.html>

Electrical aspects

What are requirements regarding electrical aspects ?

See "Electric/Measuring Devices - Chargers" sub-category.

Inflammability

Are there any specific requirements to ensure inflammability?

See General Infos : https://docs.google.com/document/d/12FUtlolsHCK_c79pKmKcE6vTSH4z563/edit?usp=sharing&oid=108158560944877852516&rtpof=true&sd=true and "Electronic/Measuring Devices - Chargers" subcategory if batteries are electrical equipment.

Hygiene

What are the rules regarding hygiene ?

Nil.

Radioactivity

What are the rules regarding radioactivity ?

See General Infos : https://docs.google.com/document/d/1kx_ngCLpSWWq3uj-Cd6W5tuH75yN-VnV/edit

Radiofrequency (2G,3G,4G,5G, Bluetooth, Ant+, GPS, Wifi...)

What are the rules regarding the radiofrequency?

Products making noise

What are the requirements regarding products making noise ?

Nil.

Chemicals substances

What are the requirements regarding chemicals substances ? Which ones are forbidden ? Limited ? Do we have to clearly indicate all substances that are in the product, or is the indication of major substances enough?"

See General Infos : https://docs.google.com/document/d/1kx_ngCLpSWWq3uj-Cd6W5tuH75yN-VnV/edit.

Dangerous Goods

Batteries must comply with the Transportation of Dangerous Goods Regulations :

- Batteries must comply with requirements of the UN Manual of Tests and Criteria. This manual describes the different tests to be conducted, starting on page 394 (lithium-ion batteries)

- Quantity limits as prescribed in Schedule 1 of the regulation

Different chemical compositions of batteries may be treated differently by the TDG Regulations (different substances have different compliance requirements)

Restrictions on mercury in batteries are imposed by the Products Containing Mercury Regulations.

Additional Regulations Cited:

UN Manual of Tests and Criteria, https://www.unece.org/fileadmin/DAM/trans/danger/publi/manual/Rev5/English/03en_part3.pdf

Transportation of Dangerous Goods Regulations, SOR/2001-286, <https://laws-lois.justice.gc.ca/eng/regulations/sor-2001-286/>

Products Containing Mercury Regulations, available at <http://laws-lois.justice.gc.ca/eng/regulations/SOR-2014-254/Full-Text.html>

Packaging requirements

Can you please indicate if there are some requirements regarding the packaging of our products (mainly they are in paper, carton, plastic, textile) ? If yes, please explain them.

See General Infos : https://docs.google.com/document/d/1kx_ngCLpSWWq3uj-Cd6W5tuH75yN-VnV/edit..

For the requirements applicable to packaging, please see above and the "labelling" section.

Laboratory

In which laboratory can we perform the testing of the product according to the standard?

See General Infos : https://docs.google.com/document/d/12FUtlolsHCK_c79pKmKcE6vTSH4z563/edit?usp=sharing&oid=108158560944877852516&rtpof=true&sd=true...

Batteries subject to the requirements of the Transportation of Dangerous Goods Regulations are to be tested in accordance with the requirements provided in these Regulations. Those subject to the UN Manual of Tests and Criteria must be tested in accordance with the requirements provided in this manual. These tests include :

- Altitude simulation
- Thermal test
- Vibration
- Shock
- External short circuit
- Impact
- Overcharge
- Forced discharge

Additional Regulations Cited :

UN Manual of Tests and Criteria, https://www.unece.org/fileadmin/DAM/trans/danger/publi/manual/Rev5/English/03en_part3.pdf

Transportation of Dangerous Goods Regulations, SOR/2001-286, [https:// laws-lois.justice.gc.ca/eng/regulations/sor-2001-286/](https://laws-lois.justice.gc.ca/eng/regulations/sor-2001-286/)

Sanctions / Fines

What are the sanctions / fines in case of non conformity ?

See General Infos : https://docs.google.com/document/d/1kx_ngCLpSWWq3uj-Cd6W5tuH75yN-VnV/edit

See "Cycling - Bicycles for Adults" subcategory.

Dangerous Goods

The TDG Act sets a maximum fine of \$50,000 or maximum imprisonment of two years. A court may also make additional orders, for example ordering the person to repair the damage to the environment arising from the commission of the offence. The total remedial liability that a court can issue cannot exceed \$1 million.

Provincial legislation for dangerous goods also sets out certain penalties.

Comments

Comments

Nil.

Certifications / Registrations

Certifications or registrations

Are there some certifications or registrations applicable to the product ?

See General Infos : https://docs.google.com/document/d/1kx_ngCLpSWWq3uj-Cd6W5tuH75yN-VnV/edit

Requirements under the TDG Act and Regulations

A shipping document must include a consignor's certification, in one of the forms allowed under section 3.6.1 of the TDG Regulations. One option is the following statement :

"I hereby declare that the contents of this consignment are fully and accurately described above by the proper shipping name, are properly classified and packaged, have dangerous goods safety marks properly affixed or displayed on them, and are in all respects in proper condition for transport according to the Transportation of Dangerous Goods Regulations."

Training Certificate

A person who handles, offers for transport, or transports dangerous goods must have the proper training certificate under Part 6.

Some provinces require certain permits or licences to handle dangerous goods. Please consult above legislation.

Additional Regulation Cited :

Transportation of Dangerous Goods Regulations, SOR/2001-286, <https://laws-lois.justice.gc.ca/eng/regulations/sor-2001-286/>

Laboratory

In case of mandatory certification/ registration that we must follow please precise the name and address of any laboratories where we can conduct them

Nil.

Comments

Comments

Nil.

Conformity documents

Documents

What are the conformity documents ? Can you please list them ?

See General Infos : https://docs.google.com/document/d/1kx_ngCLpSWWq3uj-Cd6W5tuH75yN-VnV/edit.

See "Cycling - Bicycles for Adults"

TDG Act

If products are imported in a quantity or concentration specified by regulation, the importer must have an approved Emergency Response Assistance Plan. Part 7 of the TDG Regulations set out when this plan is required. The same is true for a Security Plan

A consignor who allows a carrier to take possession of dangerous goods for transport or who imports dangerous goods into Canada must, during a five-year period that begins on the date that appears on the shipping document, make a proof of classification available to the Minister on reasonable notice given by the Minister.

Shipping documents must be kept (physically or electronically) for two years. (s. 3.11).

Additional Regulations Cited:

Canada Consumer Product Safety Act (S.C. 2010, c. 21), <https://laws-lois.justice.gc.ca/eng/acts/c-1.68/>
Transportation of Dangerous Goods Act, SC 1992, c 34, <https://lois-laws.justice.gc.ca/PDF/T-19.01.pdf>
- Transportation of Dangerous Goods Regulations, SOR/2001-286, <https://laws-lois.justice.gc.ca/eng/regulations/sor-2001-286/>

TDG Bulletin - Shipping Documents, <https://www.tc.gc.ca/eng/tdg/page-1288.html>

Format

Does it exist a specific format for the conformity documents ? If yes, can you please provide us an example in english ?

Nil.

Comments

Comments

Nil.

Importation rules

General rules

What are the general rules in order to import the product ?

See General Infos : https://docs.google.com/document/d/1kx_ngCLpSWWq3uj-Cd6W5tuH75yN-VnV/edit..

Country of Origin

Batteries are subject to country of origin requirements under the Marking of Imported Goods Order, as well as the Determination of Country of Origin Regulations.

Transport Canada Guidance on Importing Batteries

- The consignor must classify the goods properly. A proof of classification is also required to import goods subject to the TDG Regulations. A proof of classification is (a) a test report; (b) a lab report; or (c) a document that explains how the dangerous goods were classified. The proof of classification must meet the requirements of the TDG Act - When dangerous goods are imported into Canada, the consignor must, before the dangerous goods enter the country, ensure that the carrier has a shipping document containing the information required by The TDG Regulations. Please refer to Transport Canada's page for further details: <https://tc.canada.ca/en/corporate-services/acts-regulations/list-regulations/transportation-dangerous-goods-regulations>.

Documents

What are the required documents ?

See General Infos : https://docs.google.com/document/d/1kx_ngCLpSWWq3uj-Cd6W5tuH75yN-VnV/edit...

The TDG Act and Regulations set out the prescribed information to be contained in the shipping document that must accompany the goods.

A proof of classification is also required to import goods subject to the TDG Regulations. A proof of classification is :

- (a) a test report;
- (b) a lab report; or
- (c) a document that explains how the dangerous goods were classified .

A consignor who allows a carrier to take possession of dangerous goods for transport or who imports dangerous goods into Canada must, during a five-year period that begins on the date that appears on the shipping document, make a proof of classification available to the Minister on reasonable notice given by the Minister.

Time period

In which time period may we obtain the right to import ?

See General Infos : https://docs.google.com/document/d/12FUtlolsHCK_c79pKmKcE6vTSH4z563/edit?usp=sharing&oid=108158560944877852516&rtpof=true&sd=true..

Additional Regulations Cited:

- Transport Canada Guide - Importing Batteries, <https://www.tc.gc.ca/eng/tdg/transporting-batteries.html>
- Transportation of Dangerous Goods Act, SC 1992, c 34, <https://lois-laws.justice.gc.ca/PDF/T-19.01.pdf>
- Transportation of Dangerous Goods Regulations, SOR/2001-286, <https://laws-lois.justice.gc.ca/eng/regulations/sor-2001-286/>

Administration

What is the administration in charge of importations ? Name and address ?

See General Infos : https://docs.google.com/document/d/1kx_ngCLpSWWq3uj-Cd6W5tuH75yN-VnV/edit

Health Canada Consumer Product Safety Office

Via email (hc.cps-spc.sc@canada.ca)

Telephone at 1-866-662-0666

Compliance with the Transportation of Dangerous Goods Act is administered by Transport Canada, which has an office at:

Place de Ville, Tower C

330 Sparks St.

Ottawa, Ontario

K1A 0N5

Comments

Comments

See General Infos : https://docs.google.com/document/d/1kx_ngCLpSWWq3uj-Cd6W5tuH75yN-VnV/edit

Inspection of the product

Inspection method

Does it exist an inspection procedure applicable to the product ? If yes, which administration is in charge of ? Can you please describe the procedure ?

See General Infos : https://docs.google.com/document/d/1kx_ngCLpSWWq3uj-Cd6W5tuH75yN-VnV/edit

See "Cycling - Bicycles for Adults" subcategory.

For the purpose of ensuring compliance with the Transportation of Dangerous Goods Act, 1992, an inspector may, at any reasonable time, stop any means of transport and enter and inspect any place where the inspector believes dangerous goods are handled or transported or where documents relevant to the purposes of the Act are being kept.

Inspection is also allowed for under provincial statutes.

Commercialization rules

Notification / Declaration

What are the general rules in order to commercialize a product ?
Is there a notification / declaration to do ?

Pursuant to Products Containing Mercury Regulations, in certain circumstances, a permit is required in order to manufacture or import batteries containing mercury.

Additional Regulation Cited:

Products Containing Mercury Regulations (SOR/2014-254), <https://laws-lois.justice.gc.ca/eng/regulations/SOR-2014-254/index.html>

Documents

What are the required documents ?

Under the Products Containing Mercury Regulations, an application for a permit must be submitted to the Minister and must contain the information and documents prescribed by the Products Containing Mercury Regulations.

Additional Regulation Cited:

Products Containing Mercury Regulations (SOR/2014-254), <https://laws-lois.justice.gc.ca/eng/regulations/SOR-2014-254/index.html>

Delay

What is the delay to obtain the right to commercialize ?

Nil.

Display in store

Is there some specific rules on the way to display the product in store ?

See General Infos : https://docs.google.com/document/d/1kx_ngCLpSWWq3uj-Cd6W5tuH75yN-VnV/edit

Display on internet

Is there some specific mentions to display the product on internet ?

See General Infos : https://docs.google.com/document/d/1kx_ngCLpSWWq3uj-Cd6W5tuH75yN-VnV/edit

Information to consumers

Do some specific information to have be given to consumers when the product is placed on the market ?

See General Infos : https://docs.google.com/document/d/1kx_ngCLpSWWq3uj-Cd6W5tuH75yN-VnV/edit

Comments

Comments

Nil.

Administration

What is the administration in charge of commercialization ? Name and address ?

See General Infos : https://docs.google.com/document/d/1kx_ngCLpSWWq3uj-Cd6W5tuH75yN-VnV/edit

Health Canada Consumer Product Safety Office

Via email (hc.cps-spc.sc@canada.ca)
Telephone at 1-866-662-0666

Compliance with Transportation of Dangerous Goods requirements is administered by Transport Canada, which has an office at :

330 Sparks Street

Ottawa, ON

K1A 0N5